spec_ → company_ → control_

A-OSP

Legal & Operating Architecture

How the non-profit + company structure is built, owned, governed and scaled — Italy first, then the world after five years.

Companion to Investment Pitch. This document is for diligence, not persuasion: it answers how the structure works, who controls what, and why each capital type fits where.

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draft · indicative structures and costs · not legal, tax or financial advice · to be confirmed with Italian counsel and a notary

WHY THIS MATTERS

The structure is the moat — not paperwork

A proof format no single vendor controls is one an auditor, a regulator or a procurement office can rely on. **The two-entity design is what makes the format trustworthy, fundable and hard to capture — three competitive advantages at once.**

Trust

An inspectable, foundation-held specification beats a proprietary one where evidence is the product

Funding

Non-profit takes grants and public capital; company takes equity — neither contaminates the other

Non-capture

Incumbents can copy features; they cannot retroactively own a neutral, already-adopted open format

This memorandum shows the wiring behind that claim: entities, IP, conflict governance, contracts, capital, organization and the path to international scale.

DESIGN PRINCIPLES

Three rules govern every structural decision

1 · Inspectability

What carries trust (the spec, the format, the reference core) is open and foundation-held. What carries margin (product, deployment) is the company's. Buyers can always inspect the thing they're trusting.

2 · Separation of capital

Grants and public money flow only to the non-profit; equity flows only to the company. No investor takes a position in the commons; no grant subsidizes private equity value. Clean for both auditors and grant bodies.

3 · Staged reversibility

Start with the lightest legal form that works (SRL + ETS). Every upgrade — SpA, Foundation, holding, foreign entity — is triggered by a gate (revenue, round, market), never paid for upfront. The structure grows only when evidence justifies it.

Cross-reference: the commercial case lives in Pitch Deck v7; the proof mechanics in the Whitepaper / Technical Due Diligence. This memorandum is the legal and operating layer beneath both.

THE TWO ENTITIES

What each one is, holds and is bound by

Fondazione / ETS (non-profit)

- Start as an ETS association registered in RUNTS; convert to a Foundation when endowed capital and anchors justify it
- Holds: the open specification, the trademark, the certification mark, the open-core reference implementation
- Bodies: members' assembly, governing board, supervisory body above statutory thresholds, auditor where required
- Funded by: grants, donations, public capital, training and membership — never equity
- Purpose lock: third-mission, standards, education, SME clinic

OpCo — SRL → SpA (for-profit)

- Start as an SRL (or SRLS to zero notarial cost); convert to SpA at the Scenario-C / Series-A gate
- Holds: all product IP, the managed runtime, enterprise modules, integrations, customer contracts
- Bodies: board (3 at closing), control body above thresholds, ESOP plan, shareholders' agreement
- Funded by: equity (SFP / SAFE-equivalent), revenue, commercial licences
- Receives: a durable commercial licence to the core from the Foundation

Both are Italian at inception (founder base, EIC eligibility, fastest path to a signable structure). International scale comes later — slide 16.

IP & LICENCE BOUNDARY

Decided, not open: OpcO owns the product, Foundation owns the standard

The Mozilla / Eclipse pattern — a neutral standards body, a commercial entity that builds on it.

Foundation owns

- The open specification of the evidence format
- The trademark + the «A-OSP-compliant» certification mark
- The open-core reference implementation (network-copyleft)
- Neutral governance of the spec (standards committee)

OpCo owns

- All product IP: enterprise modules, managed runtime, integrations
- A durable, broad commercial licence to the core
- The commercial brand, customer contracts, data processing
- Equity, ESOP, the cap table — what investors buy

Why this resolves the investor's worry: the OpCo cannot unilaterally fork or close the standard (the Foundation governs the spec, with an independent board) — which is exactly what makes the standard credible and therefore valuable. The certification mark is the toll: granted by the Foundation, operationalized through OpCo tooling and services. Founder IP is assigned to the OpCo at day-zero; the spec is contributed to the Foundation under a contributor licence agreement.

CONFLICT-OF-INTEREST GOVERNANCE

The founder sits in both entities — here is how that is controlled

The first question serious counsel asks. Addressed head-on, not hidden.

The exposure	Founder is CEO of the OpCo and a director of the Foundation; the OpCo licenses IP from, and pays certification to, the Foundation — related-party transactions
Independent Foundation board	The Foundation's governing board has an independent majority; the founder does not chair it and abstains on OpCo-related resolutions
Related-party policy	Foundation–OpCo licence, fees and certification terms are set at arm's length, documented, and approved by the independent directors / supervisory body
Standards neutrality	Spec decisions sit with the standards committee (associations, academia, anchor clients), not with the OpCo — the format cannot be steered commercially
Audit trail	All inter-entity transactions logged; conflict register maintained; reported in both entities' filings — the founder's own audit discipline applied internally

The founder's 15 years in internal audit and as a 231 supervisory-body secretary are the asset here: conflict governance is the discipline he already practices professionally.

THE CONTRACT STACK

The documents that make the two engines run as one system

Foundation ↔ OpCo licence

durable commercial licence to the core; scope, term, fees, certification terms — arm's length

IP assignment (founder → OpCo)

all founder-created product IP assigned day-zero; the first thing diligence checks

Contributor Licence Agreement

how the OpCo and third parties contribute to the open core held by the Foundation

Trademark & certification policy

who may use «A-OSP-compliant», on what terms, revocation rights

Channel / white-label agreement

associations and advisors: revenue share, data ownership, member terms

DPA + model-provider addendum

which model, where it runs, what never leaves the client's perimeter

Shareholders' agreement

tranches on gates, vesting, ESOP, tag/drag, pre-emption, board composition

Conflict-of-interest policy

related-party rules across both entities; the register and approval flow

Draft templates for the ● items live in the data room; the rest are the legal workstream of the first 90 days (slide 13).

REQUIREMENTS & COST BY PHASE

What it takes to stand up and run the structure (indicative)

Phase	Entities & acts	Setup (one-off)	Run (per year)
H1 · Formation	SRL incorporated · IP assignment · ETS in RUNTS · core contracts · founder constraints cleared	**€4–8k**	€15–25k (accountant, filings, RC insurance, PEC, infra)
H2 · Scale	control body · enterprise contract stack · standards committee · shareholders' agreement (round 2)	**€10–20k**	€40–70k (compliance, audit, governance)
H3 · Institution	SpA conversion · Foundation upgrade (endowment) · consortium · holding decision	**case-by-case**	scales with revenue, funded by it

The honest point: the structural minimum is cheap (~€20–30k in year one). The real cost of the formation step is the founder's runway — covered by the round, not hidden in legal fees. Foundation and SpA are deliberately deferred until they pay for themselves.

NON-PROFIT BUSINESS MODEL

How the Foundation sustains itself — without equity

Inflows

- Grants & public capital (EIC, Horizon, regional, national)
- Certification & training fees («A-OSP-compliant» programs)
- Membership / consortium dues (associations, anchors)
- Donations and mission-aligned philanthropic capital
- Licence fees from the OpCo (arm's length)

Outflows / mission

- Maintains the open spec, reference core and certification
- Runs the SME clinic and training (the channel pipeline)
- Operates the standards committee and governance
- Produces public goods: education, safety reports, standards
- No dividends, no equity value — surplus reinvested in mission

The Foundation is not a cost center for the OpCo: it generates legitimacy, grant access, certification revenue and the SME pipeline — measurable inputs to the company's growth.

OPCO BUSINESS MODEL

How the company captures value — with equity

Assessment

€12–20k one-off

- paid wedge, signable report
- cash + baseline metrics + reference

Subscription

€4–6k SME · €25–45k mid · €80k+ ent.

- the recurring core
- expansion via seats and lenses

Deployment & services

€0.5–2M sovereign + SLA

- managed / on-prem / sovereign
- integration and support margin

What the OpCo sells is precisely what the commons must not: SLAs, managed hosting, enterprise lenses, certifications-as-a-service, sovereign deployments, support and integration. The open core drives trust and distribution; the OpCo monetizes everything around it. Gross-margin target 75–85% (hypothesis, measured per workflow). The mid-market (€25–45k) and enterprise / sovereign (€80k+ up to €0.5–2M) ACVs are the bridge from the SME wedge to the category-capture scenario (€50–100M+ ARR) in Pitch Deck v7 — full economics there.

FUNDING MAP

Which capital type fits which entity — and why they don't mix

Instrument	Entity	Dilutive?	Best for
SFP / SAFE-equivalent equity	OpCo	yes	angel / pre-seed round 1 (€1.2M)
Priced equity (Series A)	OpCo (→ SpA)	yes	round 2 scale-up after G3
EIC Accelerator (blended)	OpCo	partly	grant ≤€2.5M + equity ≤€15M, ~3× crowd-in
Horizon / regional / national grants	Foundation (or OpCo R&D)	no	open core, standard, SME clinic
Revenue-based / venture debt	OpCo	no	later, against recurring revenue
Public procurement / pilots	OpCo	no	sovereign deployments, public proof labs
Donations / philanthropy / dues	Foundation	no	commons, education, governance

The separation is the discipline: no equity enters the Foundation; no grant inflates private equity value. €1 of OpCo equity leverages non-dilutive grants into the Foundation — open-core status is what makes that leverage possible.

RETURNS BY CAPITAL TYPE

Each funder knows what it puts in, where it sits, and how it's measured

Funder	Into	Gets back	Return KPI
Angel / pre-seed	OpCo equity	OpCo upside, gated downside (asset-backed)	paid pull · ARR · round 2 unlocked
VC / strategic (round 2)	OpCo equity	scale-up upside, ~4–7× base case (illustrative)	NRR · enterprise logos · EV/ARR
EIC / public co-investor	OpCo blended	equity upside + non-dilutive grant leverage	crowd-in · milestones
Grant body / public	Foundation	open standard, sovereignty, public goods	adoption · training reach
Association / channel	channel + dues	revenue share + standards seat	members onboarded · retention
Corporate sponsor / model maker	pilot / adapter	provider-agnostic proof layer, regulated reach	integration · risk reduction

Multiples are illustrative, not promises (infra/SaaS comparables, to verify in DD). The structural point: equity sits only in the OpCo, public capital only in the Foundation — every funder's return is clean and separately measurable.

ORGANIZATION BY STAGE

Headcount and roles grow on gates, not on ambition

H1 · 8–10 FTE

- Founder/CEO + CTO (first hire)
- 3 engineers (proof, platform, security)
- GRC lead · customer success
- fractional CFO + counsel
- Foundation: voluntary + 1 coordinator

H2 · → 24 FTE

- +5 engineers (security, infra, QA)
- partnerships / channel lead
- finance & ops · commons lead
- 2 interdisciplinary researchers
- Foundation: standards committee live

H3 · institution

- full C-suite (post-G4)
- regional / international teams
- Foundation: professional secretariat
- consortium governance
- control & audit functions formalized

First-90-days legal workstream runs in parallel: incorporate, assign IP, register the ETS, sign core contracts, clear the founder's employment constraints.

GOVERNANCE & CONTROL

The founder's own discipline, applied to his own institution

Boards

OpCo board of 3 at closing (founder, investor, independent); Foundation board with independent majority

Advisory board

3–5 from the network (audit, academia, fintech, public) on equity tokens — turns a cold network warm

Standards committee

associations, anchor clients, academia govern the spec — commercial neutrality by design

Internal control & risk

control framework, risk register, related-party register — built by a 15-year internal auditor and 231 OdV secretary

Reporting cadence

semi-annual gates in the shareholders' agreement; quarterly reporting with AS-IS / TARGET / HYPOTHESIS tags on every metric

Stop mechanism

failed gates freeze tranches and round 2 — what remains is an inspectable asset, not a write-off

Control is not overhead here — it is the product applied to the company: A-OSP governs AI work the way the founder governs the institution.

PROGRESSIVE TECHNOLOGY

Sovereignty and assurance increase by stage — not all at once

H1	Managed SaaS (EU region) · provider-agnostic model layer · security baseline · negative tests · audit-pack export	***first proof closed, data in EU perimeter***
H2	On-prem option · SOC 2 / ISO 27001 · key management · tenant isolation · validated evaluation suite	***enterprise-grade assurance***
H3	Sovereign deployments · local / qualified-cloud models · public proof labs · eIDAS-aligned trust interop	***government-trust ready***

Provider-agnostic from day one: models (frontier or local) are replaceable processors. Sovereignty is a deployment option that deepens by stage, never a rebuild.

INTERNATIONAL SCALE

Italy first, world after five years — by trigger, not by leap

Years 1–2 · Italy	SRL + ETS, single jurisdiction. Prove paid pull, conversion, the channel. Everything signable fast.	***trigger: G3 passed***
Years 2–4 · EU	Holding decision at Series A (e.g. an EU holding over the OpCo); standards committee opens to EU associations; first cross-border pilots.	***trigger: round 2 + EU demand***
Year 5+ · World	Per-jurisdiction entities only where the market justifies; Foundation becomes the international standards home; localized certification.	***trigger: standard adoption***

Why this order is safe: the standard travels through adoption and the Foundation, not through expensive legal replication. The Italian structure is never thrown away — it is wrapped, then extended. International cost is incurred only after the standard has proven it can spread. The endgame is explicit: the Foundation becomes the international home of the proof standard — the Mozilla / Eclipse path, where adoption, not legal footprint, is what scales the category.

APPENDIX

Formation checklist, entity glossary and cross-references

First-90-days formation checklist

- Clear founder employment constraints (exclusivity, IP, non-compete)
- Incorporate SRL; adopt statute, quotas, ESOP, vesting
- Assign founder IP to the OpCo (dated, documented)
- Register the ETS association in RUNTS
- Sign Foundation↔OpCo licence + CLA + trademark policy
- Open the data room; file the EIC application
- Draft conflict-of-interest policy and register

Entity glossary & cross-references

- ETS = Ente del Terzo Settore (Italian third-sector entity), registered in RUNTS
- SRL / SRLS = Italian limited company / simplified; SpA = joint-stock company
- SFP = Strumenti Finanziari Partecipativi (participatory financial instruments)
- CLA = Contributor Licence Agreement
- Commercial case → Pitch Deck v7 · proof mechanics → Whitepaper / Technical Due Diligence · theory → ROA corpus

Indicative structures and costs to be confirmed with Italian counsel, a notary and a tax advisor. Not legal, tax or financial advice.